PRIVACY POLICY OF THE ZETA SIGNALS SERVICE

Effective date: [date]
Document version: 1.0
Service address: [domain address]

§ 1. General provisions

1. This Privacy Policy sets out the rules for the processing of personal data of users of the website operating under the name Zeta Signals, available at [domain address], hereinafter referred to as the “Service”.

2. This Privacy Policy has been prepared in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016, hereinafter referred to as the “GDPR”, and the applicable provisions of Polish law concerning personal data protection and the provision of electronic services.

3. The Service is a SaaS platform that enables access to analytical software and the Zeta Signals information panel.

4. Use of the Service may involve the processing of the User’s personal data, in particular for the purpose of creating an account, logging in, handling subscriptions, ensuring the security of the Service and fulfilling the Controller’s legal obligations.

5. The Controller exercises due care to protect Users’ privacy and applies technical and organisational measures appropriate to the nature, scope, context and purposes of personal data processing.

§ 2. Data Controller

1. The controller of the personal data of Users of the Service is:

[First Name and Last Name]
contact address: [Residential/Contact Address]
e-mail address for data protection matters: support@zetasignals.pl

hereinafter referred to as the “Controller”.

2. The Controller operates the Service as a natural person conducting non-registered activity under the applicable provisions of Polish law.

3. In matters relating to personal data protection, the User may contact the Controller via e-mail at: support@zetasignals.pl.

4. The Controller has not appointed a Data Protection Officer because, as of the effective date of this Privacy Policy, the Controller is not required to do so. All matters concerning personal data protection should be addressed directly to the Controller.

§ 3. Definitions

For the purposes of this Privacy Policy, the following terms have the meanings set out below:

1. Controller - the entity indicated in § 2 that determines the purposes and means of processing Users’ personal data.

2. Personal Data - any information relating to an identified or identifiable natural person.

3. GDPR - Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016.

4. Service - the Zeta Signals website available at [domain address].

5. User - a natural person using the Service, holding an account in the Service or purchasing a subscription.

6. Account - an individual User account created in the Service.

7. Subscription - paid access to selected functions of the Service, in particular the analytical panel.

8. Supabase - the provider of database infrastructure and authentication system used by the Service.

9. Lemon Squeezy - an external payment operator and an entity handling transactions, subscriptions, invoicing and transaction taxes in the Merchant of Record model.

§ 4. Categories of personal data processed

1. The Controller may process the following categories of Users' personal data:

a) e-mail address,
b) Account password in a secured form, in particular hashed or otherwise technically protected,
c) User identifier in the Supabase system,
d) Account status information,
e) Subscription status information,
f) transaction or subscription identifier received from Lemon Squeezy,
g) Account creation date,
h) date of last login,
i) IP address,
j) technical data of the device and browser,
k) system log data,
l) information about accepted versions of documents, in particular the Terms of Service, Privacy Policy, risk warning and consents required at purchase,
m) the content of correspondence addressed to the Controller, if the User contacts the Controller.

2. The Controller does not intend to collect special categories of personal data referred to in Article 9 GDPR, in particular data concerning health, political opinions, religious beliefs, biometric data or data concerning sexuality.

3. The User should not provide the Controller with special categories of personal data unless it is absolutely necessary in a specific matter and has been expressly agreed with the Controller.

4. The Controller does not knowingly collect personal data of children. The Service is not directed at minors.

§ 5. Purposes and legal bases of data processing

1. Users' personal data are processed for the following purposes and on the following legal bases:

1) Creating and maintaining an Account

Scope of data: e-mail address, password in secured form, User identifier, technical data related to login.

Purpose: creating an Account, enabling login, managing access to the Service and performing the electronic service.

Legal basis: Article 6(1)(b) GDPR, i.e. processing necessary for the performance of a contract or to take steps prior to entering into a contract.

2) Handling the Subscription and access to paid functions

Scope of data: e-mail address, User identifier, Subscription status, transaction identifier, customer or subscription identifier in Lemon Squeezy.

Purpose: activating the Subscription, verifying payment, managing access to paid functions of the Service and handling the automatically renewable Subscription.

Legal basis: Article 6(1)(b) GDPR.

3) Handling payments through Lemon Squeezy

Scope of data: e-mail address, transaction data, order identifier, Subscription identifier, payment status.

Purpose: linking the payment to the User's Account, activating or deactivating access to paid functions of the Service, handling refunds, chargebacks and settlements.

Legal basis: Article 6(1)(b) GDPR and Article 6(1)(f) GDPR, i.e. the Controller's legitimate interest consisting in payment handling, fraud prevention and protection against claims.

4) Ensuring the security of the Service

Scope of data: IP address, browser data, device technical data, system logs, login attempt data, timestamps, technical error data.

Purpose: ensuring the security of the Service, detecting abuse, protecting against unauthorised access, protecting against attacks, diagnosing errors and ensuring stable operation of the Service.

Legal basis: Article 6(1)(f) GDPR, i.e. the Controller’s legitimate interest consisting in ensuring the security, integrity and stability of the Service.

5) Handling requests, complaints and correspondence

Scope of data: e-mail address, message content, data voluntarily provided by the User, correspondence history.

Purpose: responding to an inquiry, handling a complaint, conducting correspondence, explaining technical or payment-related issues.

Legal basis: Article 6(1)(b) GDPR if the correspondence concerns performance of the contract, or Article 6(1)(f) GDPR if the basis is the Controller’s legitimate interest consisting in handling contact and defending against claims.

6) Compliance with legal obligations

Scope of data: transaction data, settlement data, data necessary to document performance of the service, data required by law or authorised authorities.

Purpose: fulfilment of obligations arising from legal provisions, in particular tax, accounting, consumer or personal data protection obligations.

Legal basis: Article 6(1)(c) GDPR.

7) Pursuing claims and defending against claims

Scope of data: Account data, transaction data, system logs, history of document acceptance, Subscription history, correspondence, technical data.

Purpose: establishing, pursuing or defending against claims, including claims concerning payments, use of the Service, complaints, chargebacks, breaches of the Terms of Service or legal disputes.

Legal basis: Article 6(1)(f) GDPR, i.e. the Controller’s legitimate interest.

8) Documenting acceptance of terms, consents and declarations

Scope of data: e-mail address, User identifier, date and time of acceptance, document version, IP address, user agent, transaction or Subscription identifier.

Purpose: proving that the User read the applicable documents, accepted the required terms, received information on risk, subscription, withdrawal rights and rules of operation of the Service.

Legal basis: Article 6(1)(b) GDPR and Article 6(1)(f) GDPR.

§ 6. Voluntary provision of data

1. Providing personal data is voluntary, but necessary to create an Account, use the Service and purchase a Subscription.

2. Failure to provide an e-mail address or data required to create an Account prevents the use of functions requiring registration.

3. Failure to provide data required by Lemon Squeezy may prevent payment, issuance of a sales document or activation of the Subscription.

§ 7. Recipients of personal data

1. Users’ personal data may be disclosed or entrusted to the following categories of recipients:

a) technical infrastructure providers,
b) database and authentication service providers,
c) payment operators,
d) providers of subscription management tools,
e) providers of hosting, IT, security and technical monitoring services,
f) entities providing legal, accounting or tax services, if necessary,
g) public authorities, courts or other authorised entities, if the obligation to disclose data results from law.

2. The main external providers used by the Service are:

1) Supabase

1. The Service uses Supabase services, in particular database infrastructure and the Supabase Auth authentication system.

2. Supabase may process data such as the e-mail address, password in secured form, User identifier, login data, technical data and data necessary for the operation of the Account.

3. With regard to data stored in the Service database, Supabase generally acts as a processor processing data on behalf of the Controller.

4. The Controller should have concluded or accepted a data processing agreement with Supabase, in particular a Data Processing Addendum or equivalent document.

2) Lemon Squeezy

1. The Service uses Lemon Squeezy as an external payment, subscription, invoicing and settlement operator in the Merchant of Record model.

2. Lemon Squeezy may receive from the Controller the User's e-mail address and data necessary to link the transaction to the User's Account and activate the Subscription.

3. Lemon Squeezy may independently collect and process payment data, billing data, tax data, data concerning the payment method, IP address, device information and other data required to handle transactions, prevent abuse and fulfil legal obligations.

4. To the extent that Lemon Squeezy independently determines the purposes and means of data processing, it acts as a separate controller of personal data.

5. Payment card data are not stored by the Controller in the Service.

3. The Controller may also use other technical service providers if necessary for the proper operation of the Service, provided that data are disclosed only to the extent necessary to achieve the relevant purpose.

§ 8. Transfers of data outside the European Economic Area

1. In connection with the use of services provided by entities such as Supabase and Lemon Squeezy, Users' personal data may be transferred to countries outside the European Economic Area, in particular to the United States.

2. Transfers of data outside the European Economic Area may take place only if the requirements set out in the GDPR are met, in particular where:

a) the European Commission has issued an adequacy decision for a given country or entity,
b) standard contractual clauses approved by the European Commission have been applied,
c) other appropriate safeguards provided for by the GDPR have been applied,
d) the transfer is permitted on another legal basis provided for by the GDPR.

3. The Controller takes steps to ensure that external providers processing personal data apply appropriate legal, technical and organisational safeguards.

4. The User may obtain additional information about the safeguards applied by contacting the Controller at: support@zetasignals.pl.

§ 9. Data retention period

1. Personal data are stored for the period necessary to achieve the purposes for which they were collected, unless a longer retention period results from legal provisions or is justified by the defence against claims.

2. Account data, in particular the e-mail address and User identifier, are stored for the period during which the User maintains an active Account in the Service.

3. After deletion of the Account, the User's data are deleted or anonymised, subject to data that must be stored longer due to:

a) the Controller's legal obligations,
b) tax, accounting or settlement obligations,
c) the need to handle complaints,

d) the need to prevent abuse,
e) the need to establish, pursue or defend against claims.

4. Data concerning Subscriptions, transactions, payments, consents and document acceptances may be stored for the period required by law or for the limitation period of potential claims.

5. Correspondence data are stored for the period necessary to respond and handle the matter, and then for the period necessary to defend against possible claims.

6. Technical and security logs are stored for the period necessary to ensure the security of the Service, detect abuse and diagnose errors, unless longer retention is necessary due to a security incident, dispute, complaint or legal obligation.

§ 10. User rights

1. The User has the rights set out in the GDPR, in particular:

a) the right of access to data,
b) the right to receive a copy of data,
c) the right to rectification of data,
d) the right to erasure of data, also known as the right to be forgotten,
e) the right to restriction of processing,
f) the right to data portability,
g) the right to object to the processing of data,
h) the right to withdraw consent, if processing is based on consent,
i) the right to lodge a complaint with a supervisory authority.

2. The right to erasure is not absolute. The Controller may refuse to erase data to the extent that further processing is necessary to:

a) comply with a legal obligation,
b) establish, pursue or defend against claims,
c) handle complaints,
d) demonstrate performance of the contract,
e) fulfil tax or settlement obligations.

3. The right to data portability applies to data processed on the basis of a contract or consent and by automated means.

4. The right to object applies where data are processed on the basis of the Controller’s legitimate interest, for reasons related to the User’s particular situation.

5. If data are processed for direct marketing purposes, the User may object at any time. After such objection, the data will no longer be processed for that purpose.

6. To exercise their rights, the User may contact the Controller at: support@zetasignals.pl.

7. The Controller may request the User to provide additional information necessary to confirm identity if the Controller has reasonable doubts as to the identity of the person making the request.

8. The Controller responds to the request without undue delay and no later than within one month of receiving the request. If necessary, this period may be extended by a further two months due to the complexity or number of requests.

§ 11. Right to lodge a complaint with a supervisory authority

1. The User has the right to lodge a complaint with a supervisory authority if the User considers that the processing of their personal data violates the GDPR.

2. The supervisory authority in Poland is:

President of the Personal Data Protection Office
ul. Stawki 2
00-193 Warsaw
website: https://uodo.gov.pl

3. Before lodging a complaint, the User may contact the Controller to clarify the matter.

§ 12. Cookies and Local Storage

1. The Service uses cookies and similar technologies, including Local Storage, to ensure the proper operation of the Service.

2. Cookies and Local Storage may be used in particular to:

a) maintain the User’s session,
b) enable login to the Account,
c) remember authentication status,
d) ensure the security of the Service,
e) prevent abuse,
f) handle payments and Subscriptions,
g) detect technical errors,
h) protect against unauthorised access.

3. In relation to login and session handling, the Service may use technical mechanisms provided by Supabase Auth.

4. In relation to payment handling, prevention of financial abuse, fraud prevention and transaction execution, cookies or similar technologies may be used by Lemon Squeezy or entities cooperating with Lemon Squeezy.

5. Cookies necessary for the operation of the Service may be used without the User’s separate consent if they are necessary to provide the service requested by the User.

6. If the Service uses analytical, marketing or advertising cookies that are not necessary for the operation of the Service, their use should take place after obtaining the User’s appropriate consent, where required by law.

7. The User may manage cookies through the settings of their web browser.

8. Restricting or disabling certain cookies or Local Storage mechanisms may cause the Service to function improperly, in particular by preventing login or session maintenance.

§ 13. Automated decision-making and profiling

1. The Controller does not make decisions concerning Users based solely on automated processing of personal data that would produce legal effects concerning the User or similarly significantly affect the User.

2. The Service may automatically verify the User’s Subscription status in order to grant or restrict access to paid functions of the Service. This verification serves the performance of the contract and is based on information about payment or Subscription status.

3. Security mechanisms may automatically detect suspicious activities, such as unusual login attempts, technical abuse, unauthorised access or attempts to bypass safeguards.

4. Automatic verification of access to the Service does not constitute marketing profiling or assessment of the User’s personal characteristics.

§ 14. Data security

1. The Controller applies appropriate technical and organisational measures to protect personal data against unauthorised access, loss, destruction, alteration, disclosure or unlawful processing.

2. Security measures may include in particular:

a) use of an encrypted HTTPS connection,
b) storage of passwords in a secured form, in particular hashed,
c) restricting access to administrative panels,
d) use of strong passwords and access controls,
e) restricting access to data only to persons and entities for whom it is necessary,
f) monitoring technical and security logs,
g) using safeguards provided by external suppliers such as Supabase and Lemon Squeezy,
h) creating backups, if implemented within the infrastructure used.

3. The User is obliged to keep Account login credentials confidential.

4. The User should use a strong and unique password and must not share the Account with third parties.

5. If the User suspects unauthorised access to the Account, the User should immediately contact the Controller.

§ 15. Personal data breaches

1. In the event of a personal data breach, the Controller takes actions required by the GDPR, in particular analyses the nature of the breach, its scope, possible consequences and the risk to the rights or freedoms of natural persons.

2. If the breach is likely to result in a risk to the rights or freedoms of natural persons, the Controller will notify the competent supervisory authority in accordance with applicable law.

3. If the breach is likely to result in a high risk to the rights or freedoms of the User, the Controller will notify the User of the breach in accordance with the GDPR.

§ 16. Payment and billing data

1. Payments in the Service are handled by Lemon Squeezy.

2. The Controller does not process or store full payment card data of Users.

3. Payment data, billing data, tax data, payment method data, billing address and other data required to handle payments may be collected directly by Lemon Squeezy.

4. In relation to data collected directly by Lemon Squeezy, Lemon Squeezy’s legal documents also apply, in particular its privacy policy, terms of service and data processing documents.

5. The Controller may receive from Lemon Squeezy information necessary to handle the Subscription, in particular e-mail address, customer identifier, transaction identifier, Subscription identifier, payment status and Subscription period.

§ 17. Links to external websites

1. The Service may contain links to websites or services of third parties, in particular Lemon Squeezy, Supabase or other technical service providers.

2. The Controller is not responsible for privacy practices applied by third parties outside the scope in which the Controller acts as the controller of the User’s data.

3. The User should read the privacy policies of third parties before using their services.

§ 18. Marketing and commercial communication

1. The Controller may send the User technical, organisational and transactional messages concerning the operation of the Service, Account, Subscription, payments, security or changes to legal documents.

2. Technical and transactional messages do not constitute a newsletter or direct marketing if they are necessary for the performance of the contract or for ensuring the proper operation of the Service.

3. Sending a newsletter, marketing messages or commercial information not directly related to the performance of the contract may take place only on the basis of the User’s separate consent, if such consent is required by law.

4. The User may withdraw consent to receive marketing communication at any time if such communication is launched.

§ 19. Changes to the Privacy Policy

1. The Controller may amend this Privacy Policy in the event of:

a) changes in law,
b) changes in the operation of the Service,
c) changes in the scope of data processed,
d) changes in external service providers,
e) changes in the functions of the Service,
f) the need to clarify data processing rules,
g) implementation of new safeguards or technical tools.

2. The new version of the Privacy Policy will be published in the Service.

3. If changes are material to the rights or freedoms of Users, the Controller may also inform Users of the change by e-mail.

4. Use of the Service after the changes enter into force means that the current version of the Privacy Policy applies, subject to situations in which a separate consent of the User is required.

§ 20. Contact

1. In matters concerning this Privacy Policy and the processing of personal data, the Controller should be contacted at: support@zetasignals.pl.

2. The correspondence should specify what the request concerns and provide data enabling identification of the person making the request, in particular the e-mail address associated with the Account in the Service.

§ 21. Final provisions

1. This Privacy Policy applies from [date].

2. This Privacy Policy is available free of charge in the Service in a manner enabling it to be obtained, reproduced and recorded.

3. In matters not regulated by this Privacy Policy, the GDPR and applicable provisions of Polish law shall apply.

§ 22. Language versions

1. This Privacy Policy may be made available in Polish and English language versions.

2. The English version is prepared for the convenience of Users using the English version of the Service. To the extent permitted by applicable mandatory law, in the event of any discrepancy between the Polish and English versions, the Polish version shall prevail.